

ASCII MASTER FLOW – PANEL 1/9: Party as democratic intermediary, not constitutional sovereign

ROOT QUESTION

How can parties aggregate citizens and govern without becoming private constitutional sovereigns?

DEMOCRATIC FUNCTIONS

representation | aggregation | recruitment | programme choice
| government | opposition | legislative coordination | accountability.

LEGAL LOCATION

original Constitution: no comprehensive party code.

Tenth Schedule: defection only.

RPA 1951: registration, contribution and disclosure fields.

Symbols Order 1968: recognition and symbol disputes.

TENSION

public democratic power <-> Article 19(1)(c) associational autonomy.

ASCII MASTER FLOW – PANEL 2/9: Section 29A registration and ECI's bounded cancellation power

SECTION 29A

association applies to ECI -> memorandum/rules -> allegiance declaration
to Constitution, socialism, secularism, democracy, sovereignty, unity and integrity.

REGISTRATION != RECOGNITION

registration creates statutory party status;

recognition follows Symbols Order performance criteria.

Indian National Congress v. Institute of Social Welfare (2002)

ECI has no general review/deregistration power;

narrow cancellation survives for fraud, foundational disqualification or analogous grounds.

TRAP

loss of recognition, symbol consequence and deregistration are different legal events.

ASCII MASTER FLOW – PANEL 3/9: Recognition and symbol architecture without freezing party lists

SYMBOLS ORDER 1968

recognised National party | recognised State party | registered-unrecognised party.

NATIONAL: ANY ONE DATED ROUTE

6% valid votes in four or more States + four Lok Sabha seats

| 2% Lok Sabha seats from at least three States

| State-party recognition in four States.

STATE: ANY ONE DATED ROUTE

vote-plus-seat tests | 3% or three Assembly seats | Lok Sabha ratio route | 8% vote route.

PRIVILEGE

reserved symbol and specified electoral facilities.

CONTROL

criteria are Order-based and re-verifiable; do not freeze the current party list.

ASCII MASTER FLOW – PANEL 4/9: Party system evolution, regionalisation and coalition federalism

EVOLUTION

1952-1967 Congress system -> 1967 fragmentation
-> 1977 alternation -> 1989-2014 coalition bargaining
-> post-2014 central dominance with strong State-party plurality.

PARTY-SYSTEM TYPES

one-party dominance | two-party tendency | multi-party competition | coalition system.

REGIONAL PARTIES

identity representation + State autonomy + policy innovation
<-> personalisation + fragmentation + bargaining cost.

2022 GS-II

centralisation/autonomy preference follows organisational position and power incentives,
not a permanent ideological law.

ASCII MASTER FLOW – PANEL 5/9: Internal democracy, membership, candidates and dynastic control

MEMBERSHIP

published eligibility -> reliable roll -> notice/hearing for discipline -> appeal.

LEADERSHIP

periodic election -> real competition -> transparent counting -> State-unit voice.

CANDIDATES

local consultation + published criteria + integrity + representativeness

<-> dynasty + money + winnability + central nomination.

CURRENT GAP

ECI receives organisational particulars but no comprehensive statutory

internal-democracy code exists.

REFORM LIMIT

minimum process safeguards must not authorise State selection of ideology or leaders.

ASCII MASTER FLOW – PANEL 6/9: Finance and the electoral-bonds constitutional reset

PARTY FINANCE CHANNELS

individual/corporate contribution | electoral trust | cash within law | public facilities.

DISCLOSURE

RPA Section 29C and tax/company-law rules operate through separate thresholds and filings.

Association for Democratic Reforms v. Union of India (2024)

Electoral Bond Scheme and enabling anonymity changes struck down;

voter's Article 19(1)(a) right to information protected;

SBI disclosure to ECI ordered.

LIMIT

judgment did not create full State funding, ban every corporate donation
or enact a complete campaign-finance code.

ASCII MASTER FLOW – PANEL 7/9: Whips, anti-defection and party-symbol identity

PARTY ORGANISATION

membership, leadership and candidate selection.

LEGISLATURE PARTY

members of the House belonging to the political party.

TENTH SCHEDULE

voluntary giving up | vote/abstention direction | merger | presiding-officer decision.

SYMBOLS ORDER

ECI decides rival-faction symbol/recognition questions.

Sadiq Ali v. Election Commission of India (1972)

majority in organisational and legislative wings informs symbol identity.

TRAP

symbol dispute, internal leadership, whip authorisation and defection are related but legally separate proceedings.

ASCII MASTER FLOW – PANEL 8/9: Criminalisation, disclosure and NOTA limits

Union of India v. Association for Democratic Reforms (2002) + PUCI (2002)

candidate affidavit -> criminal, financial and educational disclosure -> informed voter.

Lily Thomas v. Union of India (2013)

RPA Section 8(4) sitting-member shield removed;

disqualification still follows conviction, not accusation alone.

Rambabu Singh Thakur v. Sunil Arora (2020)

party publication of criminal antecedents and selection reasons.

PEOPLE'S UNION FOR CIVIL LIBERTIES (2013)

negative secret choice recognised.

LIMIT

NOTA does not automatically cancel the poll, disqualify all candidates or trigger re-election.

ASCII MASTER FLOW – PANEL 9/9: UPSC synthesis: regulate democratic power without nationalising association

PRELIMS FIREWALL

29A registration != recognition | reserved != free symbol
| recognition loss != deregistration | disclosure != disqualification
| NOTA != re-poll | party != legislature party | bonds verdict != finance code.

MAINS SPINE

democratic role -> segmented legal basis -> party-system evolution
-> internal democracy -> finance -> criminalisation -> whip/symbol interfaces
-> autonomy-transparency balance -> reform.

REFORM PACKAGE

verified internal elections | candidate criteria | donation transparency
| independent audit | trial expedition | narrow deregistration amendment
| proportionate ECI power + judicial review.

VERDICT

regulate the party's public consequences while preserving its legitimate associational core.